

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

ORDER

This matter is before the Court on Petitioner's motions titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith," "Motion for Recusal," and "Motion to Compel Evidence."

The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Court finds the motion for reconsideration is not well taken and is hereby DENIED. Consequently, the Court finds Petitioner's Motion to Compel Evidence to be MOOT.

Additionally, the Petitioner alleges the undersigned judge should recuse himself from this post-conviction matter. The Court finds the Petitioner's request for recusal to be without merit and hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 3rd day of September, 2020.


J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 9th DAY OF Sept, 2020
MINUTE BOOK CUM 3 PAGE 4704
JEFF BUSBY, CIRCUIT CLERK
BY S. Peltz D.C.